

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.**

Filing fees (\$275.02)

Plaintiff challenges several specific filing fees for three ex parte applications to continue trial, a stipulation and order, a remote appearance fee, and two substitution of counsel filings. Filing and motion fees are allowable costs. (Code Civ. Proc., § 1033.5, subd. (a)(1).) A remote appearance fee is neither allowable nor prohibited, so it may be allowed or denied in the court's discretion. (Code Civ. Proc., § 1033.5, subd. (c)(4).) Here, the filing fees appear to be proper charges, so the burden to show that they were not reasonable or necessary to the litigation is on the plaintiff. Plaintiff falls short of that burden. As remote appearances are commonly used in courts throughout the state and typically result in lower litigation costs generally, the court finds the remote appearance fee to be reasonably incurred and reasonably necessary for the litigation. The motion to tax filing fees is denied.

Based on the foregoing, plaintiff's motion to tax costs is granted in part. Costs are taxed in the amount of \$42,662.27 (\$22,880.82 as withdrawn by defendant and \$19,781.45 as taxed by the court). The motion is otherwise denied, and defendant is awarded costs in the total amount of \$69,531.63.

3. S-CV-0047160 GUINASSO, FRANCES v. CITY OF LINCOLN

The petition to approve compromise of minor's claim is dropped from calendar as no moving papers were filed with the court.

4. S-CV-0053111 LEROY, JOSEPH v. PICKETT, RYAN

The motion to challenge plaintiffs' work product clawback is continued to **October 8, 2026, at 8:30 a.m. in Department 3.**

5. S-CV-0054631 PTAK, CRYSTAL v. THOMAS, KIRA

If oral arguments are requested, they shall be heard on **Friday, July 24, 2026, at 8:30 a.m. in Department 3.**

Motion to be Relieved as Counsel

The motion to be relieved as counsel for plaintiffs Crystal Ptak and Olver Jouin by Leah Kestrel Finke is granted, effective upon the filing of proof of service of the signed order after hearing on the clients, Crystal Ptak and Oliver Jouin. (Code Civ. Proc. § 284, subd. (2); Cal. Rules of Court, rule 3.1362.) The court notes the motion does not

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include relief for Kestrel Law PLLC and this ruling does not include any relief not properly noticed or requested.

6. S-CV-0055510 RAILEANU, ALIONA v. BMW OF NORTH AMERICA

If oral arguments are requested, they shall be heard on **Friday, July 24, 2026, at 8:30 a.m. in Department 3.**

Plaintiff's Motion for Attorney Fees, Costs, and Expenses

Plaintiff's motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover "attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Id.* at subd. (d).)

Here, plaintiff is the prevailing party because she achieved his litigation objectives and the parties stipulated to plaintiff's recovery of reasonable attorney's fees.

Defendant does not challenge this. Accordingly, the court must

make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.' " " " "

(*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34.)

Turning to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the invoice attached as Exhibit 2 to the declaration of Ryan Youabian. The court observes instances where the attorneys and paralegals